

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LILY MADELEINE BOWLES LEO,

Petitioner

VS.

AUSTIN JACK LEO,

Respondent

) Case Number: FDI-25-801208

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

DECLARATION REGARDING NOTICE AND SERVICE OF REQUEST FOR TEMPORARY
EMERGENCY (EX PARTE) ORDERS; REQUEST FOR ORDER FOR CHANGE OF TEMPORARY
EMERGENCY ORDER, VISITATION (PARENTING TIME), APPOINTMENT OF A RECOVERY
MONITOR, OTHER ORDERS AS SET FORTH HEREIN; REQUEST FOR ORDER FOR CHANGE
OF CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME), RELOCATE WITH
MINOR CHILDREN TO MONTGOMERY TOWNSHIP, NJ; REQUEST FOR ORDER: CHANGE OF
CHILD SUPPORT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner, Lily M. Bowles Leo (Mother) and Respondent, Austin Leo (Father).
They share two minor children: Archer Leo (DOB: 09/28/17) and Violet Leo (DOB: 09/18/19).
- 2) On January 27, 2026, Father filed an ex parte application seeking emergency visitation orders, and appointment of a recovery monitor and other miscellaneous orders. In particular, Father was seeking the following orders:

- a. Pending implementation of requests, that Mother's custodial time be supervised by her parents. If they are unable or unwilling to provide direct supervision, then the children returned to Father's care and custody until the next scheduled rotation.
 - b. Appointment of recovery monitor.
 - c. Timely receipt of all drug testing results directly from testing agency/administering doctor.
 - d. Ongoing Soberlink testing.
 - e. Implications of missed/positive tests.
- 3) On January 27, 2026, the Court issued the following temporary orders pending further hearing:
 - a. Mother's parenting time to temporarily exclude overnights; and
 - b. Mother parenting time shall be supervised by maternal grandparents.
 - c. Matter was set for hearing on February 26, 2026.
- 4) On January 27, 2026, Mother filed a Responsive Declaration to Father's *ex parte* application.
- 5) On February 2, 2026, Father filed a Supplemental Declaration in support of relief requested.
- 6) On February 2, 2026, Father filed a "Declaration of Attorney Sarah J. Arnott ISO Respondent's Request for Modification of Custody and Sobriety Monitor."
- 7) On February 18, 2026, the parties stipulated to continue the February 26, 2026 hearing to March 26, 2026.
- 8) On February 24, 2026, Father filed a Request for Order seeking to modify the existing child support order, which was set for hearing on May 19, 2026.
- 9) On March 18, 2026, the parties stipulated to continue the March 26, 2026 hearing to June 16, 2026.
- 10) On April 2, 2026, the parties entered into a comprehensive stipulation, which addressed the issues raised in Father's *ex parte* application filed January 27, 2026. Of particular note to the Court is paragraph 24 on page 7 of the stipulation which states that "[b]oth parties further agree that provisions in Section B (Temporary Custody and Visitation Orders) are temporary orders that shall be reviewed at the June 16, 2026, hearing."

1 11) On May 12, 2026, the parties entered into a stipulation in which they continued and consolidated
2 the issues (02/24/26 financial RFO) set for hearing on May 19, 2026, to the pending June 16,
3 2026, hearing.

4 12) On May 22, 2026, Father filed a Request for Order in which he seeks modification of the child
5 custody/visitation orders to include a request to relocate with the minor children to Montgomery
6 Township, NJ. Father's RFO was set for hearing on July 6, 2026.

7 13) On June 10, 2026, the parties stipulated to continue the support and parenting time hearings from
8 June 16, 2026, to August 11, 2026.

9 14) On July 6, 2026, the Court held a Readiness hearing on Father's RFO filed May 22, 2026. The
10 parties were referred to FCS Mediation on August 24, 2026, and continued all matters (i.e., RFOs
11 filed by Father on 01/27/26; 02/24/26; and 05/22/26) to September 10, 2026.

12 15) Between 8/31/2026 and 9/3/2026, both parties filed multiple declarations and other pleadings,
13 including a request for evidentiary hearing filed by Mother on 9/1/2026.

14 16) On 9/8/2026, the parties informed the Court they had reached a stipulated agreement regarding
15 the support issues set for hearing on 9/10/2026 and the only issues which remain are custody and
16 Father's relocation request.

17 **B. Findings and Order**

18 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
19 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
20 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
21 child is the United States.

22 2) The Court intends to set an evidentiary hearing on the pending custody requests and Father's
23 relocation request. **The parties are ordered to appear** and shall be prepared to: (a) advise the
24 Court of any stipulated issues; (b) discuss their time estimate for trial; and (c) inform the Court of
25 the proposed number of witnesses they intend to present.